

Again, neither party provided a copy of District Policy 1312.1. Plaintiff alleges that the policy imposed a mandatory duty in without specifically naming the mandatory duty. Element two is not alleged in the FAC and element three is not alleged as to Plaintiff himself. Therefore, Plaintiff has failed to provide sufficient facts showing that District Policy 1312.1 created an enactment within the meaning of Gov. Code § 810.6. Without an enactment, the violation of Gov. Code § 815.6 does not survive demurrer. The Demurrer to the Third Cause of Action is **SUSTAINED** on that ground.

The Demurrer is **SUSTAINED** and **OVERRULED** as noted above. While it appears that the Third Cause of Action could potentially be cured by amendment including District Policy 1312.1, that would not sure the issue of the official proceedings privilege. Absent specific facts provided by Plaintiff at the time of the hearing that could cure the defects, the Court does not intend to grant leave to amend. Defendants did not provide a proposed Order as required by Local Rule of Court 5.17(D). Defendants are to prepare the Order.

WAGNER VS. LLOYD

CASE NUMBER: CVCV21-0198602

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to show Cause Re: Sanctions issued on July 30, 2026 to Defendant Jeff Lloyd, in pro per, for failure to appear on July 20, 2026 and June 1, 2026 as previously ordered by the Court. The June 1, 2026 hearing date was set in the Statement of Decision which was mailed to both parties on April 8, 2026. The July 20, 2026 hearing date was set on June 1, 2026, however, Defendant was not present and there is no evidence before the Court that notice of the July 20, 2026 hearing date was given to Defendant. The Court notes that the Order to Show Cause mailed to Defendant was returned as undeliverable. The Court further notes that while Defendant has not changed his address of record from the address used to mail the Order to Show Cause, Defendant attempted to file documents containing a different address on March 20, 2026. That address is 12280 Skyline View Lane, Brighton UT 84121. Absent an appearance by Defendant today, hearing on the Order to Show Cause will be continued to **Monday, November 9, 2026 at 8:30 a.m. in Department 63.** The clerk is directed mail a copy of today's minutes as well as the Order to Show Cause to Defendant at the address listed in this tentative ruling. Defendant is reminded of the importance of keeping the Court apprised of a valid mailing address by filing and serving a Notice of Change of Address (Judicial Council Form MC-040) any time there is a change of address.

9:00 a.m. – Review Hearings

AMYOT VS. SILVERTHORN RESORT, INC.,

CASE NUMBER: 23CV-0203487

This matter is on calendar for confirmation of transfer or uncashed checks to the State Controller's Unclaimed Property Fund. A declaration was filed providing confirmation that the funds were transferred on August 7, 2026. The Court considers the settlement to be complete. The clerk is directed to close the file and vacate any future dates.

AXIOM REPERTORY THEATRE VS. CHARITY ONE INSURANCE AGENCY, ET AL.

CASE NUMBER: 26CV-0209907

This matter is on calendar for a trial setting conference. The matter is at issue. The Court designates this as a Plan III matter and notes that the parties have discussed trial dates in August or September 2027. All parties have posted jury fees. The parties are ordered to meet and confer prior to the hearing to determine if the parties can all agree on a trial date. **An appearance is necessary on today's calendar.**